

25NNCV06306 25NNCV06306

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-06-30

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Case Number: 25NNCV06306 Hearing Date: June 30, 2026 Dept: T

Jorge Marrou vs. Best Airfares Services, et al.

Motion to Recover Reasonable Service Expenses under

Code of Civil Procedure section 415.30(d)

Moving Party: Plaintiff

Jorge Marrou

Responding Party: Defendant

Ogule LLC

Tentative Ruling: Deny

BACKGROUND

On October 30, 2025, Plaintiff Jorge Marrou (“Plaintiff”) filed a first amended complaint (“FAC”) against Defendants Steve (113), Best Airfares Services, United Airlines & Best Airfares, Ogule LLC (“Ogule”) and Does 1 through 30, alleging several causes of action.

On or about November 3, 2025, Ogule’s counsel requested that Plaintiff send him by email a notice and acknowledgment of receipt. (Marrou Decl. ¶ 2, Exh.

A.) On December 2, 2025, Marrou placed an order for electronic service of a “Notice and Acknowledgment of Receipt–Civil” to the email address for Ogule’s counsel.

On January 28, 2026, Plaintiff personally served

Ogule's authorized agent in Delaware with summons and a copy of the FAC.

Plaintiff now moves to recover the costs and fees incurred in serving Ogule's counsel with the requested notice and acknowledgement of receipt.

Defendant opposes, and Plaintiff replies.

MOVING PARTY POSITION

Plaintiff argues that it is entitled to recover its reasonable expenses in serving Defendant by publication after Defendant failed to complete and return the acknowledgment form that was served by mail along with copies of the summons and complaint within 20 days of September 23, 2025. Plaintiff further argues that Defendant has shown no good cause for failing to return to the acknowledgment of service.

Plaintiff requests an award of its reasonable expenses in the total amount of \$3,850.60.

OPPOSITION

Defendant contends that Plaintiff's purported service of the notice of acknowledgment and receipt was defective as Plaintiff failed to establish his compliance with Code of Civil Procedure section 415.30. Defendant further contends that Section 415.30 does not provide for an award of attorney's fees, as recovery is limited to only expenses that are reasonably incurred in serving or attempting to serve the party by another method. Defendant also contends that the motion relies on incorrect facts regarding counsel's agreement to receive service of the complaint.

REPLY

Plaintiff initially responds that he was not served with Ogule's opposition, so the Court should disregard it. Plaintiff responds that he issued the notice upon the request of Ogule's counsel and that Ogule's failure to sign and return the notice within the statutory period entitled Plaintiff to recover the

requested expenses, including the attorney fees accrued and reasonably expended in connection with Plaintiff's hiring of unretained counsel to prepare the service documents and draft the instant motion.

ANALYSIS

I. Legal

Standard

"A summons may be served by mail as provided in this section.

A copy of the summons and of the complaint shall be mailed (by first-class mail or airmail, postage prepaid) to the person to be served, together with two copies of the notice and acknowledgment provided for in subdivision (b) and a return envelope, postage prepaid, addressed to the sender." (Code Civ. Proc. § 415.30, subd. (a).) "Service of a summons pursuant to this

section is deemed complete on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender." (Code Civ. Proc. § 415.30, subd. (c).)

"If

the person to whom a copy of the summons and of the complaint are mailed pursuant to this section fails to complete and return the acknowledgment form set forth in subdivision (b) within 20 days from the date of such mailing, the party to whom the summons was mailed shall be liable for reasonable expenses thereafter incurred in serving or attempting to serve the party by another method permitted by this chapter, and, except for good cause shown, the court in which the action is pending, upon motion, with or without notice, shall award the party such expenses whether or not he is otherwise entitled to recover his costs in the action." (Code Civ. Proc. § 415.30, subd. (d).)

II. Discussion

On December 2, 2025, Plaintiff placed an order for electronic service of a "Notice and Acknowledgment of Receipt–Civil" to the email address for Ogule's counsel. (Marrou Decl. ¶ 2, Exh. A.) However, the "ESERVICE ORDER SUMMARY" does not reflect that any copies of the summons and the complaint were electronically served to Ogule's counsel on the stated date and time. (See *id.*) Moreover, there is no indication that any of these documents were mailed to Ogule's registered agent for service of

process or any other authorized agent. (See Code Civ. Proc. § 415.30, subd. (a) [requires mailing by first-class mail or airmail, postage prepaid]; Code Civ. Proc. § 415.50 [permitting service by mail on out-of-state corporation]; Code Civ. Proc. § 416.10 [specifying the persons authorized to accept summons on behalf of a corporation].)

As Plaintiff has submitted no proof of service evidencing service by mail of the summons, complaint, and notices in the manner required by Section 415.30(a) to Ogule's authorized agent, the Court finds that Plaintiff is not entitled to recover any of his reasonable expenses incurred in personally serving Ogule after electronically serving Ogule's counsel with a copy of the notice and acknowledgment of receipt. (Code Civ. Proc. § 415.30, subd. (d) [requiring service by mail pursuant to Section 415.30(a) as a precondition for recovery of any reasonable expenses incurred once the party to whom a copy of the summons was mailed failed to sign and return the notice and acknowledge of receipt of summons within 20 days from the date of mailing].)

Therefore, the motion is denied.

RULING

Plaintiff

Jorge

Marrou's Motion to Recover Reasonable Service

Expenses under Code of Civil Procedure section 415.30(d) is DENIED